

Construction of three feeder lines taking off
from East rail corridor railway line
Kharuki to Dharamjogam.

Total Area:- 36.943 ha.

Raigash division area:- 2.484 ha.

Encl:- 1. 1st stage approval letter
16/05/2020
2. 2nd stage approval letter
20/07/2021



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन
मंत्रालय

MINISTRY OF ENVIRONMENT, FORESTS &
CLIMATE CHANGE

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001
apccfcentral-ngp-mef@gov.in

F. No. FC-II/CH-131/2020-NGP/7200

Dated: 16th September, 2020

To

Principal Secretary (Forests)
Government of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Diversion of 36.943 ha. of forest land for non-forest purpose under Forest Conservation Act, 1980 proposed for construction of three new feeder lines taking off from East Railway line from Kharsia to Dharamjaigarh for transportation of coal, District- Raigarh, in the state of Chhattisgarh -regarding.

Sir,

I am directed to refer to State Government of Chhattisgarh letter no F-5-05/2020/10-2 dated 29.06.2020 on the above subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980 and State Government letter No. F 5-05/2020/10-2 dated 10.08.2020 forwarding additional information as desired by Regional Office vide letter dated 13.07.2020 and to say that the said proposal has been examined and recommended by the Regional Empowered Committee constituted under Section - 4 of the Forest (Conservation) Act, 1980.

After careful examination of the proposal of the State Government and on the basis of the approval of the proposal by the Regional Empowered Committee, the Central Government hereby accords '**in-principle**' approval under Section - 2 of the Forest (Conservation) Act, 1980 for diversion of 36.943 ha. of forest land for non-forest purpose under Forest Conservation Act, 1980 proposed for construction of three new feeder lines taking off from East Railway line from Kharsia to Dharamjaigarh for transportation of coal, District- Raigarh, in the state of Chhattisgarh subject to the fulfilment of the following conditions:

- i. Legal status of the forest land shall remain unchanged;
- ii. **Compensatory afforestation**
 - a. Compensatory afforestation shall be taken up by the Forest Department over 74.00 ha degraded forest land (Comp. No. 591/P area **46.62** ha., Comp. No. 501/1A area **6.39** ha, Orange Area 70/1, 69/1 area **11.70** and Orange Area 501/1A area **9.29** all in Dharmanjaigarh Forest Division) at the cost of the user agency. As far as possible, a mixture of local indigenous species shall be planted, 10% of which shall be RET species of Raigarh District and monoculture of any species may be avoided;
 - b. The Orange Area proposed for CA shall be transferred and mutated in the name of Forest Department and notified as RF/PF prior to Stage-II approval. A copy of the original notification declaring the non-forest land under Section 4 or Section 29 of the Indian Forest Act, 1927, or under the relevant section of the State Forest Act as the case may be, will be submitted by the State Government prior to Stage-II approval;

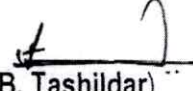
- iii. The cost of compensatory afforestation at the prevailing wage rates as per compensatory afforestation scheme and the cost of survey, demarcation and erection of permanent pillars if required on the CA land shall be deposited in advance with the Forest Department by the project authority. The CA will be maintained for 10 years. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- iv. **NPV:**
- a. The State Government shall charge the Net Present Value(NPV) for the 36.943 ha forest area to be diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 30/10/2002, 01/08/2003, 28/03/2008, 24/04/2008 and 09/05/2008 in IA No. 566 in WP (C) No. 202/1995 and as per the guidelines issued by the Ministry vide letters No. 5-1/1998-FC (Pt.II) dated 18/09/2003, as well as letter No. 5-2/2006-FC dated 03/10/2006 and 5-3/2007-FC dated 05/02/2009 in this regard;
 - b. Additional amount of the NPV of the diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee, shall be charged by the State Government from the User Agency. The User Agency shall furnish an undertaking to this effect;
- v. User agency shall restrict the felling of trees to minimum number in the diverted forest land and the trees shall be felled under the strict supervision of the State Forest Department and the cost of felling of trees shall be deposited by the User Agency with the State Forest Department;
- vi. All the funds received from the user agency under the project shall be transferred/ deposited to CAMPA fund only through **e-portal** (<https://parivesh.nic.in/>);
- vii. The complete compliance of the FRA, 2006 shall be ensured by way of prescribed certificate from the concerned District Collector;
- viii. Speed regulating signage will be erected along the road at regular intervals in the Protected Areas/ Forest Areas;
- ix. User Agency shall obtain Environmental Clearance as per the provisions of the Environmental (Protection) Act, 1986, if applicable;
- x. Roadside plantation shall be done by the User Agency in all possible available stretches under the consultation with State Forest Department for reclamation of public roads which are used for coal transportation; further, State Government shall ensure that roadside plantations has been carried out in all road stretches used for coal transportation by covering them under any plantation scheme. Details of plantation along with scheme shall be submitted to Regional Office along with Stage-I approval;
- xi. All recommendations as suggested by Wildlife Institute of India, Dehradun in Wildlife Management Plan shall binding on the User Agency and the State Government shall ensure that all recommendations are complied by User Agency within stipulated time. A detailed report in this regard shall be submitted along with Stage-I compliance report.
- xii. User Agency shall develop a separate nursery at one or more places to raise at least 25,000 seedlings of forestry species along with bamboo, fruit bearing, medicinal, ornamental and indigenous/local every year. At least 50% of seedlings shall be planted by User Agency in the vicinity of project area including forest area and for better relation with local people residing in vicinity of proposed proposal, User Agency shall voluntary distribute remaining 50% of seedlings to them free of cost. A compliance report including species wise details of seedlings

- raised, location of plantation area and details of villagers whom seedlings have been distributed need to be prepared every six month and submitted to Regional Office of MoEF&CC;
- xiii. The layout plan of the proposal shall not be changed without prior approval of Central Government;
 - xiv. No labour camp shall be established on the forest land;
 - xv. Sufficient firewood, preferably the alternate fuel, shall be provided by the User Agency to the labourer after purchasing the same from the State Forest Department or the Forest Development Corporation or any other legal source of alternate fuel;
 - xvi. The boundary of the diverted forest land shall be suitably demarcated on ground at the project cost, as per the directions of the concerned Divisional Forest Officer;
 - xvii. No additional or new path will be constructed inside the forest area for transportation of construction materials for execution of the project work;
 - xviii. The period of diversion under this approval shall be co-terminus with the period of lease to be granted in favour of the user agency or the project life, whichever is less;
 - xix. The forest land shall not be used for any purpose other than that specified in the project proposal;
 - xx. The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of Govt. of India;
 - xxi. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as per the MoEF&CC Guideline F. No. 11-42/2017-FC dt 29/01/2018;
 - xxii. Any other condition that the Ministry of Environment, Forests & Climate Change may stipulate from time to time in the interest of conservation, protection and development of forests & wildlife;
 - xxiii. The compliance report shall be uploaded on e-portal (<https://parivesh.nic.in/>);

After receipt of a report on the compliance of conditions no ii (b), iii, iv (a), vi, x, xi and undertakings, duly authenticated by the competent authority in the State Government, in respect of all other conditions, from the State Government, formal approval will be considered in this regard under Section-2 of the Forest (Conservation) Act, 1980. The transfer of forest land to the User Agency shall not be affected by the State Government till formal order approving the diversion of forest land is issued by the Central Government.

This is issued with the approval of DDGF (Central), Regional Office, MoEF&CC (WCZ), Nagpur

Yours faithfully,


(C. B. Tashildar)
AIGF (Central)

Copy to:

- i. The PCCF, Government of Chhattisgarh, Raipur.
- ii. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh, Raipur.
- iii. User agency.
- iv. Guard file


(C. B. Tashildar)
AIGF (Central)



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MINISTRY OF ENVIRONMENT, FORESTS
& CLIMATE CHANGE

Integrated Regional Office (Raipur)
Atal Nagar, Naya Raipur
Chhattisgarh- 492015
iro.raipur-mefcc@gov.in

F.No. FC-II/CH-131/2020-NGP/ 29

Dated: 28th July, 2021

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Diversion of 36.943 ha. of forest land for non-forest purpose under Forest Conservation Act, 1980 proposed for construction of three new feeder lines taking off from East Railway line from Kharsia to Dharamjaigarh for transportation of coal, District- Raigarh, in the state of Chhattisgarh- regarding.

Sir,

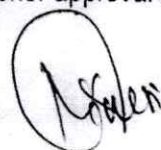
I am directed to refer to State Government of Chhattisgarh letter no. F-5-05/2020/10-2 dated 29.06.2020 on the above subject seeking prior approval of the Central Government in accordance with Section-2 of the Forest (Conservation) Act, 1980 and to say that after careful examination of the proposal of the State Government and further approval from REC the 'in-principle' approval was accorded by the Regional Office of the MoEF&CC vide letter of even number dated 16.09.2020. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh has now submitted the compliance report of conditions stipulated in the Stage-I approval and requested to consider the proposal for grant of final approval under the Forest (Conservation) Act, 1980.

In this connection, I am further directed to inform that on the basis of compliance report submitted by the State Government of Chhattisgarh vide letter no. F-5-05/2020/10-2 dated 29.06.2020 and additional information as submitted by letter No. Bhu-Prabandh/Vividh/115-799/1357 dated 30.06.2021, the Central Government hereby accords '**final approval**' under Section-2 of the Forest (Conservation) Act, 1980 for diversion of 36.943 ha. of forest land for construction of three new feeder lines taking off from East Railway line from Kharsia to Dharamjaigarh for transportation of coal, District- Raigarh, in the state of Chhattisgarh subject in the State of Chhattisgarh subject to following conditions:

1. Legal status of the forest land shall remain unchanged.
2. Forest land will be handed over only after required Orange Area for raising CA is handed over by the user agency.
3. Compensatory afforestation
 - a) Compensatory afforestation shall be taken up by the Forest Department over 74.00 ha degraded forest land (Comp. No. 591/P area 46.62 ha., Comp. No. 501/1A area 6.39 ha, Orange Area 70/1, 69/1 area 11.70 and Orange Area 501/1A area 9.29 (all in Dharmanjaigarh Forest Division) at the cost of the user agency. As far as possible, a mixture of local indigenous species shall be planted, 10% of which shall be RET species of Raigarh District and monoculture of any species may be avoided.
 - b) The Orange Area which has been transferred and mutated in favour of the State Forest Department for the purpose of compensatory afforestation shall be declared as Reserved Forest under Section-4 or Protected Forest under Section-29 of the Indian

Forest Act, 1927 or under the relevant Section(s) of the State Forest Act. The Nodal Officer, Forest (Conservation) Act, 1980 may report compliance within a period of six (6) months from the date of grant of final approval and send a copy of the original notification declaring the Orange Area under Section 4 or Section 29 of the Indian Forest Act, 1927, or under the relevant section of the State Forest Act as the case may be, to this Office for information and record;

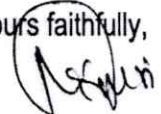
4. User agency shall restrict the felling of trees to minimum numbers in the diverted forest land and the trees shall be felled under the strict supervision of the State Forest Department and cost of felling of trees shall be deposited by the User Agency with the State Forest Department.
5. The complete compliance of the FRA, 2006 shall be ensured by way of prescribed certificate from the concerned District Collector.
6. Roadside plantation shall be done by the User Agency in all possible available stretches under the consultation with State Forest Department for reclamation of public roads which are used for coal transportation.
7. All recommendations as suggested by Wildlife Institute of India, Dehradun in Wildlife Management Plan shall binding on the User Agency and the State Government shall ensure that all recommendations are complied by User Agency within stipulated time.
8. To improve the Forest/ Tree cover and to reduce pollution, as mandated in National Forest Policy, 1988 and Environmental (Protection) Act, 1986 respectively; User Agency shall develop a separate nursery at one or more places to raise at least 25,000 seedlings of forestry species along with bamboo, fruit bearing, medicinal, ornamental and indigenous/local every year. At least 50% of seedlings shall be planted by User Agency in the vicinity of project area including forest area and for better relation with local people residing in vicinity of proposed proposal, User Agency shall voluntary distribute remaining 50% of seedlings to them free of cost. A compliance report including species wise details of seedlings raised, location of plantation area and details of villagers whom seedlings have been distributed need to be prepared every six month and submitted to Regional Office of MoEF&CC.
9. The User Agency shall obtain Environmental Clearance as per the provisions of the Environmental (Protection) Act, 1986, if applicable.
10. The layout plan of the proposal shall not be changed without prior approval of Central Government.
11. No labour camp shall be established on the forest land.
12. Sufficient firewood, preferably the alternate fuel, shall be provided by the User Agency to the labourer after purchasing the same from the State Forest Department or the Forest Development Corporation or any other legal source of alternate fuel.
13. The boundary of the diverted forest land shall be suitably demarcated on ground at the project cost, as per the directions of the concerned Divisional Forest Officer.
14. No additional or new path will be constructed inside the forest area for transportation of construction materials for execution of the project work.
15. The period of diversion under this approval shall be co-terminus with the period of lease to be granted in favour of the user agency or the project life, whichever is less.
16. The forest land shall not be used for any purpose other than that specified in the project proposal.
17. The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of Govt. of India.



18. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as per the MoEF&CC Guideline F. No. 11-42/2017-FC dt 29/01/2018.
19. Any other condition that the Ministry of Environment, Forests & Climate Change may stipulate from time to time in the interest of conservation, protection and development of forests & wildlife.

This issue with the approval of Regional Officer, IRO, MoEF&CC, Raipur.

Yours faithfully,



(N K Dimri)

Technical Officer (Gr-I)

Copy to:

- i. The PCCF (HoFF), Government of Chhattisgarh, Raipur.
- ii. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh, Raipur.
- iii. User agency.
- iv. Guard file



(N K Dimri)

Technical Officer (Gr-I)

